

Condominium Living

Condominium is a form of ownership in which a party owns a specific unit within a development, building or community. In addition to having ownership of their own unit, condominium owners also have shared ownership interests in the "common elements". A condominium unit owners' association oversees the management and maintenance of the property of the "common elements". Often there are multi-unit buildings that share common elements such as the hallways, lobby, elevators and exterior of the building. These may even have shared common elements such as pools, swimming pools, and playgrounds.

Many owners like that condominium ownership is ownership in real property-unlike a cooperative, where all you own is a share in the cooperative's corporation. The buyer completes an application and arranges financing, just like the purchase of other types of real property. With a condo, you own real estate-the unit and all of the space inside the unit belong to you-and you also share ownership in the common areas.

When a condo is built, the developer creates a condominium declaration, which has a description of the property, each unit, how the building is governed, and how dues are assessed. Owners adhere to condo rules set forth in bylaws and covenants, conditions, and restrictions (CCRs), which may place restrictions on subletting, use of common areas, etc. It also states who's responsible for repair and maintenance, and how ownership of the common areas is shared among unit owners. A declaration is recorded in the county public records, for anyone to view.

When you buy a condo, just like any other property, there's a title search, a deed transfer, and recording. You can own your condo in any way you want-in severalty, as joint tenancy, as tenants in common, or tenants by the entirety.